CONSTABLE CHAKA JUSTICE 068855R
and
CONSTABLE MUDZITIRWA TRUST 079933H
versus
THE TRIAL OFFICER N.O.
(SUPERINTENDENT NYAMUZINGA)
and
THE COMMISSIONER-GENERAL OF POLICE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 13 July 2026

Opposed review application

Mr *Mugiya*, for the applicants
Mr *Chimunoko*, for the respondents

MAMBARA J:

[1] This is an application for review in terms of r 62 of the High Court Rules, 2021. The applicants were convicted and sentenced by the first respondent following disciplinary proceedings conducted under the Police Act [*Chapter 11:10*]. They appealed to the second respondent. The second respondent dismissed the appeal in appeal judgment CGP 65/25 for non-compliance with s 11 of the Police (Trials and Boards of Inquiry) Regulations, 1965. The present application nevertheless seeks, principally, the setting aside of the first respondent's decision and the acquittal of the applicants.

[2] At the hearing, Mr *Chimunoko* raised the preliminary point that the application was directed at the wrong decision. He submitted that, the applicants having pursued an appeal to finality, any subsequent review ought to have been directed at the second respondent's appellate decision and not at the decision of the trial officer.

[3] Mr *Mugiya* responded that the true attack was upon the second respondent, who had allegedly upheld the first respondent's decision on a technicality. That submission is

irreconcilable with the papers. The relief sought is directed at the first respondent. More decisively, at p 31 of the record, the first applicant states that "the decision under attack is that of the 1st respondent and not the 2nd respondent"; that the dismissal of the appeal is "not the issue before this court"; and that "[t]he issue before the court is that of the decision of the 1st respondent." The position is therefore not ambiguous.

[4] An application stands or falls on the case made in its founding papers. A litigant cannot replace that case through an answering affidavit, heads of argument or submissions made from the bar. See *Muchini* v *Adams & Ors* SC 47/13 and the South African decision of Director of *Hospital Services* v *Mistry* 1979 (1) SA 626 (A) at 635H–636B.

[5] In any event, it is inaccurate to say that the second respondent upheld the first respondent's reasoning on a technicality. The second respondent did not determine the substantive merits of the appeal. He dismissed it for non-compliance with the prescribed appeal procedure under s 11 of the Regulations. If that determination was unlawful, irrational or procedurally irregular, it was that determination which had to be properly brought on review.

[6] The position in police disciplinary proceedings was settled in *Sergeant Khauyeza (F048677J)* v *The Trial Officer (Superintendent J Mandizha) & Anor* HH 311/18. The court held that where a member elects to appeal against the decision of a single trial officer to the Commissioner-General and the appeal is determined, the member may not thereafter seek review of the single trial officer's decision. The proper course is to seek review of the Commissioner-General's appellate decision. In such a review, the court will necessarily have regard to the proceedings and decision of the trial officer.

[7] The applicants did not seek an order setting aside appeal judgment CGP 65/25. Nor did they formulate a proper ground of review directed at the second respondent's interpretation or application of s 11. Describing the dismissal as a "technicality" does not establish a reviewable irregularity. In *Tobacco Processors Zimbabwe (Pvt) Ltd* v *Mutasa & 11 Ors* SC 12/21, the Supreme Court stated that the use of "shall" ordinarily denotes mandatory compliance, although the consequences of non-compliance must be determined from the statute and its purpose. The enforcement of a prescribed appeal procedure is therefore not, without more, a gross irregularity.

[8] The second respondent's appellate decision remains extant and legally operative until it is set aside in competent proceedings. It cannot simply be ignored. The same principle was expressed in *Oudekraal Estates (Pty) Ltd* v *City of Cape Town & Ors* 2004 (6) SA 222 (SCA) at para 26: even an allegedly unlawful administrative decision produces legal consequences for so long as it has not been set aside.

[9] It follows that this court cannot bypass the extant appellate determination and move backwards to review the first respondent's decision. The application is fundamentally misdirected. It is consequently unnecessary to determine the complaints concerning the wording of the disciplinary charge, its allegedly disjunctive character, the alleged procedural defects at the trial, or the further point concerning exhaustion of remedies before the Police Service Commission.

[10] In the opposing papers the respondents had also contended that an earlier application, HCH 2160/25, had been dismissed by CHIRAWU-MUGOMBA J and that the applicants could not institute fresh proceedings without first dealing with that extant order. Mr *Chimunoko* expressly abandoned that point at the hearing. No determination is therefore made upon it.

[11] The preliminary objection concerning the decision selected for review is dispositive. Costs should follow the result. There is, however, no basis for costs on a punitive scale.

[12] Accordingly, it is ordered that:

a) The application for review is dismissed.
b) The applicants shall pay the respondents' costs jointly and severally, the one paying the other to be absolved.

MAMBARA J…….

Mugiya Law Chambers, applicant's legal practitioners
Civil Division, respondents'legal practitioners